

21STCV21246 21STCV21246

County: los-angeles

Division: Civil Law and Motion

Department: 414

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Case Number: 21STCV21246 Hearing Date: September 18, 2026 Dept: 414

21STCV21246 S.C. an incompetent, by and through her Guardian ad Litem

Sergio Cardenas. v. County of Los Angeles, et al.

Friday,

September 18, 2026

[TENTATIVE]

ORDER DENYING REQUEST FOR AN ORDER FOR DETERMINATION OF GOOD FAITH SETTLEMENT

[TENTATIVE] ORDER

DENYING THE PETITION FOR APPROVAL OF COMPROMISE OF CLAIM FOR A PERSON WITH A
DISABILITY (2020)

I.

BACKGROUND

The

third amended complaint ("TAC") alleges that Plaintiff is under the
jurisdiction of Los Angeles Juvenile Dependency Court. Plaintiff alleges that Defendants
collectively caused Plaintiff to be placed in improper care settings without an
adequate case plan and deprived Plaintiff of access to services

Settling

Defendants who signed the stipulation with Plaintiff for good faith
determination are ABC Unified School District and William Gee. Non-settling
Defendants are Los Angeles Unified School District and College Hospital, Inc.,
dba College Hospital Cerritos.

II. DISCUSSION

The stipulation

does not comply with the statute governing good faith determination. Settling parties may proceed by way of a noticed motion in compliance with Code Civ. Proc., § 1005 as joint tortfeasors are entitled to a hearing on the issue of good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors. (Code Civ. Proc., § 877.6 subd. (b)(1).)

Alternatively,

the settling parties can serve a notice of settlement with the application for good faith settlement determination by certified mail to all other parties. If a non-settling defendant does not file a motion to contest settlement within 25 days, the court can sign the order. (Id.)

The

statute does not permit a determination of good faith settlement by stipulation and order served electronically on all other parties.

Accordingly,

the Court denies the request to sign the stipulation and order submitted by settling parties on September 15, 2026.

[TENTATIVE] ORDER DENYING

THE PETITION FOR APPROVAL OF COMPROMISE OF CLAIM FOR A PERSON WITH A DISABILITY
(2020)

Plaintiff

seeks the Court's approval of Plaintiff's settlement with Defendants, ABC Unified School District and William Gee. The petition is premature as the Court has not determined that settlement was made in good faith. Additionally, the petition is incomplete as Plaintiff's counsel proposes to retain \$100,000 of the settlement proceeds in counsel's trust account to be "applied to on-going litigation costs" and further anticipated compromise petitions. (Pet. Att. 3b, p.5.)

While

the Department of Child and Family Services does not assert a lien at this time as Plaintiff represents in the petition, Plaintiff anticipates that DCFS may

present liens against future additional settlements. (Id. para. 25). Similarly, the petition is premature in that Plaintiff defers reimbursement of costs at this time “and defer[s] them to future anticipated compromise petition approvals.” (Id. p. 5, 25.) The Court declines to engage in piecemeal approval.

The petition also anticipates the formation of a special needs trust with \$100,000 to be paid to the conservator, Maya Rubin, who is the proposed trustee. (Id. p. 6, para 3.) If funds are distributed to a special needs trust, the Probate Division must review the terms of the trust which must include the provisions required by the California Rules of Court, rule 7.903 and Los Angeles Superior Court Rule 4.116. Los Angeles Super. Ct. Rule A 4.115 subd. (c).

Additionally, to facilitate a timely review, a party seeking to establish and fund a trust as part of a petition for approval of a compromise must, within two court days of the filing of the petition for approval of compromise and trust, lodge with the filing window of the Probate Division at the Stanley Mosk Courthouse a physical copy of the face page of the petition to approve compromise and attach a copy of the proposed trust instrument and the proposed order approving the compromise and trust. (Id. subd. (b).)

Accordingly, the Petition is DENIED.